

lodged and will be executed.

SIMS VS. C&M OPPORTUNITIES, LLC, ET AL.

CASE NUMBER: 25CV-0208112

Tentative Ruling on Motion for Summary Judgment: Defendant Good News Rescue Mission ("Good News") moves for summary judgment as to all claims asserted against it in both the Sims action (Case No. 208112) and the consolidated Ceremony action (Case No. 0208573). The motion is brought on the ground that Good News did not own, possess, or control the property where the October 8, 2024 attacks occurred, and therefore owed no duty of care to any Plaintiff as a matter of law. Plaintiff Eugene Evans Sims opposes the motion. The Ceremony Plaintiffs have not filed a separate opposition. The Court confirms that the Sims and Ceremony actions have been consolidated by stipulation of all parties and Order of this Court dated May 5, 2026. The instant ruling applies to Good News' motion as to all claims in both actions.

As a threshold matter, Plaintiff failed to file a Separate Statement of Disputed and Undisputed Material Facts as required by Code of Civil Procedure § 437c(b)(3) and California Rules of Court, rule 3.1350. The Separate Statement requirement is mandatory for both the moving and opposing party, and its purpose is to afford due process to the parties and to permit the Court to focus efficiently on whether material facts are truly in dispute. *North Coast Business Park v. Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 31. Failure to comply "may constitute sufficient ground, in the court's discretion, for granting the motion." (Code Civ. Proc., § 437c(b)(3).) Because Plaintiff failed to file the required Separate Statement, Good News' Undisputed Material Facts ("UMFs") are deemed undisputed for purposes of this motion. The Court will nonetheless address the evidence and arguments raised in Plaintiff's opposition in the interest of completeness.

Standard for Summary Judgment: "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).)

"The trial court may grant summary judgment if there is no triable issue of material fact and the issues raised by the pleadings may be decided as a matter of law. (Code Civ. Proc., § 437c, subds. (c), (f) A defendant moving for summary judgment satisfies its burden "by showing one or more elements of the cause of action in question cannot be established or there is a complete defense to that cause of action. If the defendant meets this initial burden, the opposing party must then make a *prima facie* showing of the existence of a triable issue of material fact. [Citation.] [¶] ... We strictly construe the moving party's affidavits and liberally construe the opposing party's affidavits. We accept as undisputed facts only those portions of the moving party's evidence that are not contradicted by the opposing party's evidence." (*City of San Diego v. Superior Court* (2006) 137 Cal.App.4th 21, 25, 40 Cal.Rptr.3d 26.) Thus, "[w]hen deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467, 71 Cal.Rptr.3d 707.) *RND Contractors, Inc. v. Superior Ct.* (2025) 112 Cal. App. 5th 697, 702.

Allegations and Issue of Duty: This case arises out of a stabbing attack which occurred on October 8, 2024. Plaintiffs' Complaints for personal injury and wrongful death generally allege that Eugene Sims and Donna Ceremony were attending a rehabilitation program when they were attacked, and that Defendants' negligence in the ownership or operation of the program and/or the premises caused Plaintiff harm. To establish negligence or premises liability, a plaintiff must prove a legal duty of care, breach, causation, and damages. Duty is a threshold question of law for the court. *Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1142.

“The proper test to be applied to the liability of the possessor of land in accordance with [Civil Code section 1714] is whether in the management of [one's] property [one] has acted as a reasonable [person] in view of the probability of injury to others.” (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 672.) This duty is not limited to one who holds title over the land “but, rather, [is] owed by the person in possession of the land ... because [of the possessor's] supervisory control over the activities conducted upon, and the condition of, the land.”” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1157–1158 (*Alcaraz*).)” *Moses v. Roger-McKeever* (2023) 91 Cal.App.5th 172, 178-179.

Undisputed Material Facts: The attack took place at 2186 Pine Street. This property was owned, operated, and controlled by Defendant Robert Cronin and C&M Opportunities. (UMF 30.) Plaintiff has submitted no competent evidence that Good News ever owned, possessed, controlled, or managed 2186 Pine Street. Absent any ownership, possession, or control over the premises where the attack occurred, Good News cannot be held liable for harm arising from conditions or activities at that location. A defendant "cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control." *Isaacs v. Huntington Mem'l Hosp.* (1985) 38 Cal.3d 112, 134.

Plaintiff argues that Good News controlled the “Manor” (2171 Market Street), an adjacent property, by virtue of March 1, 2024 lease agreement, and that this control gives rise to a duty extending to the property where the attack occurred. The Court finds that the agreement never went into effect, and Good News did not own, possess, or control the Manor at the time of the attack. Good News’ undisputed evidence establishes that the agreement was a preliminary, non-binding, application-stage letter of intent drafted to satisfy a requirement of the Federal Home Loan Bank (“FHLB”) in connection with a grant application. (UMF 5, 6.) The Bank provided a conditional award of funding in anticipation of the parties completing all necessary steps, but the funding disbursement never happened. The parties did not create an operating MOU, did not form property management or operation contracts, and did not assign rents. (UMF 8, 9.) Good News never received keys to the Manor, never collected rents, never placed residents, never supervised programming, and never had any operational role at the property. (UMF 6, 7, 11, 12.) Additionally, the Deed of Trust was a security instrument executed at the FHLB's request as part of the ongoing grant application process. It was not a grant deed and did not transfer title, possession, or operational control. (UMF 11.) Because the conditions precedent to the FHLB grant were never satisfied and no funds were disbursed, the instrument had no operative effect. (UMF 11, 12.)

Moreover, there is no evidence that Good News had any involvement with the "Future Story" program operated by Shasta Thrive at 2174 Pine Street or the adjacent 2186 Pine Street property. Good News did not run, supervise, staff, or fund that program. (UMF 15, 16, 17, 18.) Good News played no role in determining which individuals could attend the program or reside at The Manor. (UMF 14, 19.) In sum, Good News has established that it had no duty of care.

Plaintiff's Alternative Request for Relief: In the alternative, Plaintiff requests that the Court deny or continue the motion under Code of Civil Procedure § 437c(h). CCP 437c(h) provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." The declaration in support of the continuance request must describe the discovery that is necessary to resist the motion. *Franzee v. Seeley* (2002) 95 Ca.4th 627, 634-635. A party who seeks continuance under CCP 437c(h) must show why the discovery necessary to oppose the motion for summary judgment or summary adjudication could not have been completed sooner and accordingly requires the court to grant the continuance. *Braganza v. Albertson's LLC* (2021), 67 Cal. App. 5th 144. It is not sufficient merely to indicate that further discovery or investigation is contemplated. *Bahl v. Bank of America* (2001) 89 Ca.4th 389, 396-397.

Here, Plaintiffs' argument and affidavit state only that Plaintiff needs to conduct additional discovery to obtain additional evidence to support its case. Plaintiff does not explain what essential facts may exist, and does not state any reasons those facts cannot be presented. The Court also notes that Plaintiff previously brought its own Motion for Summary Adjudication on this very same issue regarding establishing Good News's duty of care, which was denied. The request to deny or continue the hearing on this motion pursuant to CCP 437c(h) is therefore denied.

The undisputed evidence establishes that Good News Rescue Mission did not own, possess, or control the property where the October 8, 2024 attacks occurred, nor did it own, possess, or control The Manor at the time of the attacks. Good News had no involvement in the "Future Story" program, no role in Witcher's admission or supervision, and no special relationship with the Plaintiffs. Plaintiff has failed to produce competent, admissible evidence raising a triable issue of material fact on the threshold question of duty. Plaintiff's failure to file a required Separate Statement provides an additional independent basis to grant the motion.

Defendant Good News Rescue Mission's Motion for Summary Judgment is **GRANTED** as to all causes of action in both the Sims action (Case No. 25CV-0208112) and the Ceremony action (Case No. 25CV-0208573). Defendant has lodged a proposed order which will be executed.

9:00 a.m. Review Hearings

BAUDIZZON VS. RODRIGUES

CASE NUMBER: 24CV-0205393

This matter is on calendar for status review. Plaintiff has filed a Status Statement which indicates the matter has settled as to Defendant Rodrigues. The case remains open to pursue Plaintiff's uninsured motorist claim. Plaintiff requests a continuance to November 2026 in order to pursue that claim. Today's review hearing is continued to **Monday, November 9, 2026, at 9:00 a.m. in Department 64** for status. No appearances are necessary on today's calendar.

JAMES VS. GERLINGER FOUNDRY AND MACHINE WORKS INC.

CASE NUMBER: 25CV-0206862

This matter is on calendar for review regarding status of settlement. At the April 6, 2026 review hearing, the parties informed the Court that this matter had settled. The Court directed the parties to file a notice of settlement as required by CRC 3.1385. No notice of settlement has been filed.